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No. 94-1705

Supreme Court, U.S.
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IN THE
SUPREME COURT OF THE UNITED STATES

October Term, 1994

Aston A. Beadle,

Petitioner,

v.

City of Tampa,

Respondent.

On Petition for A Writ of Certiorari
To The United States Court of Appeals
For the Eleventh Circuit

**BRIEF IN OPPOSITION TO PETITION FOR
WRIT OF CERTIORARI**

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QUESTION PRESENTED

I. Whether the Eleventh Circuit erred in affirming the Magistrate Judge's decision when it found that requiring the City of Tampa Police Department to grant special shift exceptions to Plaintiff Beadle so as to accommodate his religious beliefs, that this would result in a greater than de minimis cost to the City, therefore, the City met its obligations under Title VII.

PARTIES TO THE PROCEEDING

Petitioner: Aston A. Beadle

Respondents: City of Tampa Police Department,
a division of the City of Tampa

City of Tampa, the employer, is a municipal corporation. Therefore, it has no parent companies or subsidiaries. Respondent makes this declaration pursuant to Supreme Court Rule 29.

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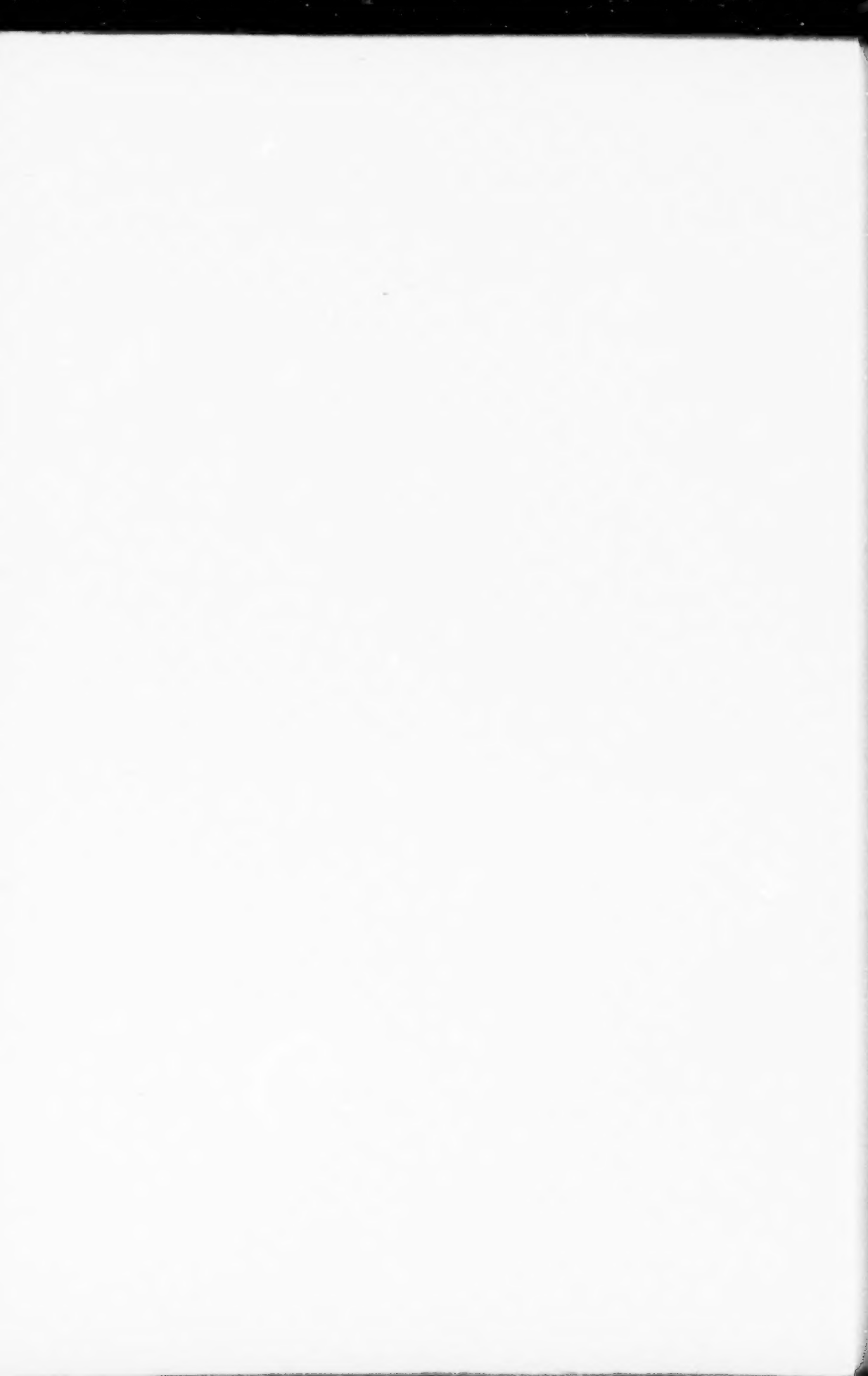
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No. 94-1705

IN THE
SUPREME COURT OF THE UNITED STATES

October Term, 1994

ASTON A. BEADLE,

Petitioner,

vs.

CITY OF TAMPA,

Respondent.

OPINIONS BELOW

The opinion of the Court of Appeals for the Eleventh Circuit is reported at 42 F.3d 633 (11th Cir. 1995).

The Memorandum Opinion of the United States District Court for the Middle District of Florida, Tampa Division, which was entered on October 1, 1994, is unreported and is contained in the appendix at pages 11A-28A in petitioner's Petition for Writ of Certiorari.

JURISDICTION

Invoking federal jurisdiction under Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e, et seq., and under 28 U.S.C. § 1331 (general federal question jurisdiction), the petitioner brought this suit in the United States District Court for the Middle District of

Florida, Tampa Division. On October 4, 1993, the district court entered judgment on the merits in favor of the defendants.

On January 18, 1995, in response to petitioner's appeal, the Eleventh Circuit entered a judgment and order affirming the district court's judgment.

The jurisdiction of this Court to review the judgment of the Eleventh Circuit is invoked under 28 U.S.C. § 1254(1).

STATUTORY PROVISIONS INVOLVED

42 U.S.C. § 2000e-2(a) provides:

It shall be an unlawful employment practice for an employer --

(1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or

(2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex, or national origin.

42 U.S.C. § 2000e(j) provides:

The term "religion" includes all aspects of religious observance and practice, as

well a belief, unless an employer demonstrates that he is unable to reasonably accommodate to an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business.

42 U.S.C. § 2000e-2(h) provides in pertinent part:

Notwithstanding any other provision of this subchapter, it shall not be an unlawful employment practice for an employer to apply different standards of compensation, or different terms, conditions, or privileges of employment pursuant to a bona fide seniority or merit system . . . provided that such differences are not the result of an intention to discriminate because of race, color, religion, sex, or national origin . . .

STATEMENT OF THE CASE

A. Relevant Facts

The Defendant, City of Tampa, is a municipal corporation, and at times relevant to this case in 1988, the City's Police Department ("the Police Department") employed 955 individuals. The Police Department conducts its patrol law enforcement operations through its two "uniform" districts or divisions covering different geographical regions of the City. Defendant's Police Department also operates the Tampa Police Academy ("the Academy") to train its patrol officers (R1-41-VIII-D).

During an employee's first year of employment with the Police Department, the officer serves a one year probation (R4-71-182). During the first year of employment, an employee is not entitled to any leave time (R4-71-183). Additionally, the employee is not entitled to any comp time (Id.). No vacation time is available for the first six (6) months (DX 6 at \$ 19.4)

Plaintiff's terms and conditions of employment were covered by a collective bargaining agreement. Under the terms of the above-described collective bargaining agreement, it provides in § 11.3:

11.3 Work Assignments. When skill, performance, and ability are equal, and in the sole opinion of the supervisor the tasks to be performed will not be affected, classification seniority shall be considered a factor in work assignments for patrol officers within a uniform district squad. Seniority shall not be a consideration when training is a factor in work assignments.

After orientation, Plaintiff entered the Academy on February 22, 1988. The Academy lasted sixteen (16) weeks until May 27, 1988. At that time in 1988, Academy graduates were randomly assigned by the Personnel Bureau to the patrol division field training squads. Such assignments also would depend on the number of available training officers. Training squads consist of a sergeant, a corporal, and officers who had specific course training in functioning as a field training officer and this training is over and above regular patrol officer training (R1-41-VIII-L; R4-71-180-182).

Defendant's field training program in 1988 consisted of four phases for a total of 16 weeks.¹ The first phase consisted of a two-week orientation period within which the recruit would not be graded and was to merely ride with a field training officer to acquaint the recruit with certain types of calls and the area of patrol. The next portion of the training consisted of a four week training period within which the recruit would be graded by his or her field training officer. During this initial six week period, the recruit was assigned to his initial training squad, and in the case of Plaintiff, the first six weeks would have been spent on Sergeant Cook's squad. The next two training phases consist of two four-week periods during which the recruit is assigned to a "sister" training squad and to a different field training officer. There is value to the change in training officers during this "swap" as it allows the recruit an advantage of seeing different methods of supervision and different methods of training from different officers. Also, it allows the officer to patrol different areas of the City. During the final two week phase of the program, the recruit returns to his original squad and his original field training officer to complete his evaluation and field training (R1-41-VIII-M; DX 9; R4-71-107-108, 180-183, 206, 237-239).

Since the inception of the field training program in which Plaintiff initially participated, a recruit fresh out of the Academy

¹ Occasionally, in an "unusual" situation, training would be extended for those individuals who did not successfully complete the training within 16 weeks.

had never been placed on anything other than a field training squad (R4-71-207). The only exception to this occurred on a single occasion when there were a surplus of recruits and during the initial two-week orientation phase, the recruits were temporarily assigned to ride in patrol vehicles with police officers who were not field training officers. The recruits, however, still were required to be graded by field training officers (R4-71-239-241).

When Plaintiff was given his initial training assignment, other than for "downtown squads" (which were not training squads (R4-71-205-208)), all of Defendant's patrol squads, including the training squads, were on a four (4) 10-hour days on/three (3) day off rotating shift system. In 1988, the days off for such squads rotated forward one day every 56 days (R1-41-VIII-N; R4-71-106, 184).

Plaintiff's initial assignment was to Sergeant Cook's squad. Plaintiff's days off were Tuesdays, Wednesdays and Thursdays. Plaintiff did not have his Sabbath off from work (R1-41-VIII-S; R4-71-59).

During his first week of work, Plaintiff met with Sergeant Cook to request the upcoming Saturday off so that he could observe his Sabbath. Sergeant Cook referred Plaintiff's request to Major Pegram. Major Pegram in turn met with Colonel Fox. On June 17, 1988, Major Pegram granted Plaintiff his request for Saturday, June 18, as absent without pay (R4-71-60, 213-214). Major Pegram informed Plaintiff that he would accommodate Plaintiff for this request only. Plaintiff was told that, in the future, no further accommodations could be made (R4-71-108, 187, 214).

The following week, Plaintiff tried to get the following Saturday off from work to observe his Sabbath. Plaintiff again met with Major Pegram (R4-71-61, 214). A series of meetings by Plaintiff with Defendant's command staff then followed, including meetings by Plaintiff with Captain Walker, Colonel George Fox, Colonel Curtis Lane and Chief A.C. McLane. Chief McLane stated to Plaintiff to the effect that the Police Department could not make any special arrangement for Plaintiff's Sabbath (R4-71-61-63).

Approximately one day later, either Wednesday or Thursday, June 22 or 23, 1988, Plaintiff met with Major Pegram to inform him that he wished to resign from the Police Department (R4-71-67, 68, 215).

As found by both lower courts, Beadle's request for a permanent day off during his field training in June 1988 would be detrimental to the consistency of his training (R4-71-238-39). Specifically, as testified by former Colonel Fox, the objective of the field training program is to expose the officer to just about every situation that the officer may encounter as a uniformed officer (R4-71-182). That is the reason why officers rotate among different field training officers. It gives the officers the chance to see the techniques used by different officers as well as being exposed to different parts of the City, where problems can differ from neighborhood to neighborhood (R4-71-238). The consistency of the training program is absolutely necessary (Id.). It is extremely important to the continuity of the training program that the police officers be trained under different training officers (R4-71-182, 238-240). For Plaintiff to be assigned a particular field training officer during his

entire training would be detrimental to the program (Id.). If the Defendant did not properly train its police officers, the City could be subjected to great liability (R4-71-239). Accordingly, to accommodate Plaintiff's religious beliefs would have created an undue hardship and burden on the City of Tampa (R4-71-191-210). This probably explains why Beadle conceded that he knew of no accommodation available to him (R4-71-141-142).

Finally, during the trial of the companion case to this action, Beadle v. Hillsborough County Sheriff's Office, et al.,² two expert witnesses testified: Richard Kiebusch for the Defendant, and Douglas Bennett for the Plaintiff.³ Both expert witnesses concurred that in law enforcement, safety is the most important issue. Both also concurred that you should not compromise safety, and by permitting of a permanent day off, this could affect employee morale which, in turn, affects the safety of a law enforcement operation. Mr. Bennett also testified that while he would accommodate the religious desires of a Seventh Day Adventist, like Mr. Beadle, who wanted Saturdays off to observe his faith, he would not accommodate Methodists, Baptists and Catholics because they would want Sunday off. In his words:

² A Petition for Writ of Certiorari in the Sheriff's case is also pending before this Court. See Beadle v. Hillsborough County Sheriff's Office, Case No. 94-1610.

³ By agreement of counsel, the testimony of these two witnesses were applicable to both actions.

The way its worked out over the years in the state of Tennessee, applicants regularly ask that question. They are regularly told 'No, we do not make accommodations to let people off on Sundays.' (R-3-103-04).

B. The Trial Court's Decision

In his Findings of Fact, the Magistrate Judge found, among other things, "At the trial, the City command officers testified that assignments to a particular training squad without rotation is detrimental to the consistency of the training and results in lack of proper training. According to the City, it is extremely important to the continuity of the training that the officers be trained under different field training officers."

Additionally, the Magistrate also found, "According to the City, the value of the change during this 'swap' [referring to the rotation of field training officers during the initial 16 week training phase] is to allow the recruit to see different methods of supervision and different methods of training from different officers. The City also contends that this method of training allows the officer to patrol different areas of the City."

Based partly upon these findings of fact, the Magistrate Judge concluded, "[r]equiring the department to grant shift exceptions to Beadle would be to incur a greater than de minimis cost because of the public health, safety and welfare considerations associated with police work. Title VII does not require the employer to assure the individual the opportunity to observe religious practices at all costs. See Ansonia

Bd. of Educ. v. Philbrook, 479 U.S. 60, 107 S.Ct. 367, 93 L.Ed. 2d 305 (1986)."

C. The Court of Appeals Decision

The Eleventh Circuit Court of Appeals affirmed the decision of the Magistrate Judge in favor of the City of Tampa.

In addressing the issue of undue hardship, the Eleventh Circuit found, "[t]he Department assigned recruits to several different training officers during the course of their training so that the recruits could experience varying methods of supervision and observe other patrol areas in the City." 42 F.3d at 634. The Eleventh Circuit went on to note "In order to accommodate Beadle's religious practices, the Department would have been forced to assign him to another training squad and not to reassigning him during the third phase of training. Beadle admits that he would not have experienced the educational benefits of working with different training officers" 42 F.3d at 637. The Eleventh Circuit then concluded as follows: "We agree with the magistrate court's refusal to interfere with the Department's scheduling and training programs. When the employer's business involves the protection of lives and property, 'courts should go slowing restructuring [its] employment practices.' Albuquerque, 545 F.2d at 114. We conclude that the magistrate court did not err when it found that requiring the Department to grant shift exceptions would result in a greater than de minimis cost and that the city had met its obligation under Title VII." 42 F.3d at 636-37.

REASONS FOR DENYING THE WRIT

The gravamen of Plaintiff Beadle's argument is that this Court should overturn eighteen years of precedents established by this Court in Trans World Airlines, Inc. v. Hardison, 432 U.S. 63 (1977), and hold that undue hardship means substantial economic burden or significant burdens on the employer rather than what this Court held in Hardison that "undue hardship" is any cost to the employer that is more than de minimis. Trans World Airlines, Inc. v. Hardison, 432 U.S. at 84. Beadle's argument is not supported by a single post-Hardison decision.

Alternately, Beadle claims that this Court should accept certiorari and hold that unless the employer suffers "costs" in terms of monetary costs, then no matter what other economic burden the employer may suffer in accommodating the employee, it is by Plaintiff Beadle's definition not an "undue hardship." The absurdity of this position is best illustrated in this particular case. Specifically, the evidence in this case shows that unless Beadle completed the field training program as it existed at the time, he would not enjoy the full benefits of the program by having the opportunity of working with different field training officers, on different shifts, and in different locations of the City. Therefore, he would potentially put his and other officers' lives at risk because of his inadequate training. While arguably the monetary "cost" of training Beadle by assuring him Saturdays off would not have cost the City of Tampa any additional money, it would have cost the City of Tampa something much more important: human lives. Every municipality should put more importance on the lives of its police officers

than dollars and cents. Accordingly, to suggest that the City of Tampa did not incur undue hardship because it does not monetarily cost the City any additional money to accommodate Beadle, but instead it puts police officers lives at risk, simply makes no sense and one which this Court has never adopted.

Plaintiff's final position is that the lower court allegedly created an exception from Title VII's religious accommodation requirements for municipal law enforcement agencies. As will be explained below, neither the Defendant nor the lower courts have taken the position suggested by Beadle. However, as agreed by all parties, the determination of what constitutes reasonable accommodation should be based on a case-by-case basis. Moreover, as numerous cases have held, when the nature of the employer's business is in the protection of the health, safety and welfare of the community, this factor should be considered in determining what constitutes reasonable accommodation and undue hardship.

In summary, neither lower courts committed error in their determination in favor of the Defendant. Moreover, there is no reason why this Court should rewrite 18 years of precedent and hold that undue hardship means substantial burden on the employer. Accordingly, this Court should not exercise its discretionary jurisdiction and grant Plaintiff Beadle's Petition for Writ of Certiorari.

LEGAL ARGUMENT

A. THE ALLOCATION OF THE PARTIES' RESPECTIVE BURDENS IN A TITLE VII RELIGIOUS DISCRIMINATION CASE⁴

In religious discrimination cases brought under Title VII of the Civil Rights Act of 1964 ("Title VII"), as amended, 42 U.S.C. §§ 2000e - 2000e-17, a plaintiff has the initial prima facie burden of proving "he had a bona fide religious belief that conflicted with an employment requirement, that he informed his employer of this belief and that he was discharged for failing to comply with the conflicting employment requirement." Mathewson v. Fla. Game & Fresh Water Fish Comm'n, 693 F. Supp. 1044, 1050 (M.D. Fla. 1988), aff'd, 871 F.2d 123 (11th Cir. 1989), citing Brener v. Diagnostic Center Hospital, 671 F.2d 141, 144 (5th Cir. 1982).

Once a plaintiff has carried his initial prima facie burden, the burden shifts to the defendant to show either (1) that it offered the plaintiff a reasonable accommodation of his religious practices, or (2) that any accommodation of the plaintiff's practices would result in undue hardship to the employer. Mathewson, 693 F. Supp. at 1050. As to defendant's first alternative production, a reasonable accommodation, the defendant is not required, as suggested by Beadle, to give

⁴ At trial and on appeal, the City argued that the lower courts should never even get to the merits of the case because Beadle knowingly and voluntarily waived his Title VII rights when he signed a release. Both lower courts disagreed. That issue is not before the Court.

plaintiff a choice among several accommodations; nor is defendant required to demonstrate that alternative accommodations proposed by plaintiff entail undue hardship. Mathewson, 693 F. Supp. at 1050, citing, Ansonia Board of Education v. Philbrook, 107 S.Ct. 367 (1986). Moreover, defendant is not required to accommodate the religious practices of plaintiff in exactly the way the plaintiff would like to be accommodated. Pinsker v. Joint Dist. No. 28J, 735 F.2d 388 (10th Cir. 1984). Nor does Title VII require defendant to accommodate plaintiff's religious practices in a way that spares plaintiff any cost whatsoever. Brener, 671 F.2d at 141, 145-46.

As stated above, in determining the degree of reasonable accommodation required, the courts have traditionally looked to the nature of defendant's business. When the defendant's business concerns the protection of the public's health, safety or welfare, the courts have held that very little is required of the defendant to make a reasonable accommodation. See, e.g., Blair v. Graham Correctional Center, 782 F. Supp. 411 (C.D. Ill. 1992), aff'd, 4 F.3d 996 (7th Cir. 1993), cert. denied, 1993 WL 501913 (1994)(corrections officer); Ryan v. U.S. Dep't of Justice, 950 F.2d 458 (7th Cir. 1991), cert. denied, 112 S. Ct. 2309 (1992)(FBI agent); United States v. City of Albuquerque, 545 F.2d 110 (10th Cir. 1976), cert. denied, 433 U.S. 909 (1977)(firefighter); Murphy v. Edge Memorial Hospital, 550 F. Supp. 1185 (M.D. Ala. 1982)(pharmacists); and Miller v. Drennon, 56 Fair Empl. Prac. Cas. (BNA) 274 (D. S.C. 1991), aff'd, 966 F.2d 1443 (4th Cir. 1992)(paramedic). This balancing of interests was best summarized by the Tenth Circuit in United States v. City of Albuquerque, 545 F.2d 110 (10th Cir. 1977),

cert. denied, 433 U.S. 909 (1976), when the court stated:

In our view when the "business" of an employer is protecting the lives and property of a dependent citizenry, courts should go slow in restructuring his employment practices (citation omitted).

Id. at 114.

Only if the defendant is unable to put forth any evidence of a reasonable accommodation, does the employer need to put forth evidence of an undue hardship. See, e.g., Mathewson, 693 F. Supp. at 1050; Mann v. Frank, 795 F. Supp. 1438 (W.D. Mo. 1992), and Brown v. Keebler Co., 62 Fair Empl. Prac. Cas. (BNA) 1170 (N.D. Geo. 1993), aff'd, 37 F.3d 637 (11th Cir. 1994). This is because "[o]nce the employer [Defendant] has demonstrated that it has offered a reasonable accommodation to the employee [Plaintiff], the statutory inquiry ends." Cook, 779 F. Supp. at 1016, 1022, citing Ansonia, supra. If defendant fails to put forth any evidence of a reasonable accommodation, then defendant must put forth evidence of an undue hardship by either showing (1) the accommodation compromises the employment entitlement of other employees, or (2) the cost of the accommodation is more than de minimis. Murphy, supra, citing Trans World Airlines, Inc. v. Hardison, 432 U.S. 63, 75 (1977). If defendant proves either a reasonable accommodation or an undue hardship, judgment must be entered in its favor. Since the Eleventh Circuit focused on the Magistrate Judge's finding of undue hardship, Defendant

will address the correctness of that portion of the decision.⁵

B. BOTH LOWER COURTS CORRECTLY HELD THAT TO FURTHER ACCOMMODATE PLAINTIFF'S RELIGIOUS BELIEFS WOULD HAVE CREATED MORE THAN A DE MINIMIS COST TO THE DEFENDANT

Plaintiff asserted at trial and on appeal that the Defendant could have accommodated him by transferring him to Sergeant Dawson's training squad. After this transfer, Plaintiff suggests he should not have rotated off Sergeant Dawson's training, but remained with him throughout his training. Plaintiff then suggest that after completion of his training, he should have been assigned the downtown squad which did not work on Saturday and Sundays. As the evidence showed, and the lower courts correctly found, this recommended accommodation would have created more than a de minimis cost to the Defendant. Specifically, the Magistrate Judge found, "However, the Court concludes that requiring the Department to grant shift

⁵ Defendant contends that the Magistrate Judge was correct when he ruled that the Defendant met its duty of reasonable accommodation when it offered its neutral shift rotating system. Since the Eleventh Circuit's opinion did not focus on this issue, neither will this brief. However, in support of its position that its neutral rotating shift system was a reasonable accommodation to Plaintiff Beadle, Defendant incorporates its argument put forth in its Brief in Opposition to Beadle's Petition for Writ of Certiorari in Beadle v. Hillsborough County Sheriff's Office, et al., No. 94-1610 (pp.14-18)(the companion case) currently pending before this Court.

exceptions to Beadle would be to incur greater than a de minimis cost because of the public health, safety and welfare considerations associated with police work" (R2-78-21).

As stated above, in determining what is a reasonable accommodation, and by analogy, what constitutes a de minimis costs, courts have employed a balancing of interest test between the religious beliefs of the employee and the nature of defendant's business. (See further discussion in Section C, infra.) Since Defendant is in the business of protecting the health, safety and welfare of its citizens, very little hardship is required before a de minimis cost is found on the defendant. See City of Albuquerque, supra; Blair, supra; Ryan, supra; Murphy, supra; Brener, supra; and Miller, supra. As noted in Beadle's Petition and as the court in Yott v. North American Rockwell Corp., 602 F.2d 904, 909 (9th Cir. 1979), cert. denied, 445 U.S. 928 (1980) held, "Further, a standard less difficult to satisfy than the 'de minimis' standard for demonstrating undue hardship expressed in Hardison is difficult to imagine."

Courts have held in a variety of circumstances that having to guarantee an employee off for his Sabbath creates an undue hardship. For example, in Hardison, supra, the court held that allowing an employee off on his Sabbath is an undue hardship because of the loss of efficiency it creates in the other jobs. Likewise, in EEOC v. Heil-Quaker Corp., 55 Fair Empl. Prac. Cas. (BNA) 1895 (M.D. Tenn. 1990), the court held that undue hardship may also consist of increased safety hazards, corresponding increased risk of liability, increased cost of workers' compensation and decreased employee morale. In Ackerman v. Amtrak, 772 F. Supp. 579 (S.D. Fla. 1990), the

court held that undue hardship could consist of possible loss of efficiency that may result from being understaffed and the friction it creates with other co-employees. Finally, in Cook v. Chrysler Corp., 779 F. Supp. 1016 (E.D. Mo. 1991), aff'd, 981 F.2d 336 (8th Cir. 1992), cert. denied, 113 S. Ct. 2953 (1993) the court held that undue hardship could be shown by proving the hard feelings and animosity that may be created by allowing the employee to transfer or swap days off.

All of the above reasons (loss of efficiency, increased safety risk, increased liability and decrease in employee morale) were found to exist in this case. These hardships were testified to by Defendant's witnesses and both experts. Accordingly, the accommodations suggested by the Plaintiff amounted to more than a de minimis cost to the Defendant. Therefore, there is no reason to disturb the findings of the lower courts.

Beadle realizes the difficulty of this Court to accept certiorari because of both lower courts' determination that to further accommodate his religious beliefs, the City would have incurred more than a de minimis cost. Accordingly, Plaintiff has tried to cleverly argue that both lower courts found only a "burden" of accommodating the Plaintiff and not a "cost." This argument lacks merit for two reasons. First and foremost, the lower courts both found that to further accommodate Plaintiff Beadle would have resulted in more than a de minimis cost. Additionally, Plaintiff's argument that burden is not the same as costs as that term has been used by this Court and lower courts is without merit.

In analyzing Plaintiff's argument, the appropriate starting point is clearly Trans World Airlines, Inc. v. Hardison, supra. In discussing the issue of undue hardship, this Court first stated:

The Court of Appeals also suggested that TWA could have permitted Hardison to work a four-day week if necessary in order to avoid working on his Sabbath. Recognizing that this might have left TWA short-handed on the one shift each week that Hardison did not work, the court still concluded that TWA would suffer no undue hardship if it were required to replace Hardison either with supervisory personnel or with qualified personnel from other departments. Alternatively, the Court of Appeals suggested that TWA could have replaced Hardison on his Saturday shift with other available employees through the payment of premium wages.

432 U.S. at 84-85. The Hardison court then went on to hold:

Both of these alternatives would involve cost to TWA either in the form of lost efficiency in other jobs or higher wages.

432 U.S. at 84 (emphasis supplied). Moreover, the Court went on to state:

The dissent argues that 'the cost to TWA either paying overtime or not replacing respondent would [not] have been more than de minimis. Post, at

2281 n.6. This ignores, however, the express finding of the District Court that '[b]oth of these solutions would have created an undue burden on the conduct of TWA's business.'

432 U.S. at 84 n.15 (emphasis supplied). Moreover, the Eleventh Circuit correctly noted in its opinion, "The Court [referring to the Court in Hardison] has also recognized that the phrase 'de minimis cost' entails not only monetary concerns, but also the employer's burden in conducting its business." 42 F.3d at 636.

Hardison and its progeny have held that undue hardship can be defined in terms of both economic costs to the employer and the burden on the employer such as loss of efficiency, increased risk, decreased employee morale. To suggest as Plaintiff Beadle has that the City would incur undue hardship only if it had to pay overtime, but not if the City has one less patrol officer on the street, thereby endangering lives, makes no logical sense and has no legal support.

C. BOTH LOWER COURTS CORRECTLY CONSIDERED THE NATURE OF DEFENDANT'S BUSINESS WHEN DETERMINING WHETHER BEADLE'S REQUESTED ACCOMMODATION AMOUNTED TO MORE THAN A DE MINIMIS COST TO THE DEFENDANT

As the Magistrate Judge correctly found and as affirmed by the Eleventh Circuit, "Each case necessarily depends upon its own facts and circumstances, and in a sense every case boils down to a determination as to whether the employer acted reasonably." (R-78-18), citing, United States v. City of Albuquerque, 545 F.2d 110, 114 (10th Cir. 1977), cert. denied, 433

U.S. 909 (1976). Because the courts utilize a case-by-case analysis, it follows that an employer's duty to accommodate varies from case to case.

Other than City of Albuquerque, there are few Title VII religious accommodation cases involving public employers in a public safety, law enforcement or correctional function. In Blair v. Graham Correctional Center, 782 F. Supp. 411 (C.D. Ill. 1992), aff'd, 4 F.3d 996 (7th Cir. 1993), cert. denied, 1993 WL 501913 (1994), the court considered a Seventh Day Adventist correctional officer's claim of religious discrimination against the Illinois Department of Corrections. Much like the Tenth Circuit in City of Albuquerque, in analyzing reasonable accommodation under Title VII, the Blair court reasoned, "[i]n a paramilitary organization, it is even more difficult to accommodate employees who are restricted as to their assignments in view of the fact that the demands may overwhelm the organization." 782 F. Supp. at 414. The court applied this standard to a correctional facility:

The personnel structure of Graham Correctional Center is analogous to a paramilitary organization. This Court notes the importance to the public interest in having a full staff of corrections officers on duty every hour of every day of the week, including sabbaths and religious holidays and in an institution such as Graham Correctional Center. Obviously, most everyone prefers not to work weekends and holidays. . . . If Defendants were required to amend the union agreement in order to accommodate all employees, religious

practices, they would run the risk of having the correctional institutions undermanned, thereby endangering other employees and society.

782 F. Supp. at 414.

Similarly, the court considered the mission of the defendant employer, the FBI, in Ryan v. U.S. Dept. of Justice, 950 F.2d 458 (7th Cir. 1991). In Ryan, an FBI agent refused a case assignment based on a personal religious belief which prevented him from investigating anti-military activity. In upholding the employer's discharge, the Seventh Circuit commented:

Sympathy for a dedicated agent trapped between his career and his faith comes easily It is difficult for any organization to accommodate employees who are choosy about assignments. For a paramilitary organization, the tension is even greater. . . . With good will all around, and flexibility on the part of Ryan's fellow agents, it just might be possible to make a go of it. Title VII does not, however, compel the FBI to attempt this Compelled, as it is by Title VII, to have one rule for all of the diverse religious beliefs and practices in the United States, the FBI may choose to be stingy with exceptions lest the demand for them overwhelm it.

Id. at 462.

Likewise in Murphy, a case involving licensed practical nurses and Miller, a case

involving EMS paramedics, the courts found that the employer did not discriminate against the employee on the basis of their religion. Both courts noted the importance of the particular public safety functions that the employer was performing.

Surely, no one can argue that the job functions of a police officer are any less important to the public's health, safety and welfare than FBI agents, firefighters, LPNs or EMSs. In short, Defendant has not been able to locate a single decision where an employer was found to have discriminated against an employee on the basis of their religion where the employer is engaged in the protection of the health, safety and welfare of the general public. As the Magistrate Judge noted and the Eleventh Circuit concurred:

Although the cases reflect the view that the trial court must evaluate reasonable accommodation and undue hardship in light of the employment context of each case, the Court is unable to find any authority which would require a public health or safety agency to grant such an employee an exception from the customary neutral rotating shift system used by law enforcement agencies in order to accommodate the Sabbath requirements of the officer (R2-78-20).

Plaintiff Beadle states in his Petition "The Court did not rely on any evidence of adverse public health, safety or welfare consequences, but simply made a per se determination that law enforcement positions are exempt from Title VII accommodation

requirements" (Pet. Writ Cert., p.23). There is no where in either of the lower courts' decisions that specifically hold that law enforcement departments, as a matter of law, are exempt from Title VII accommodation requirements. Moreover, both lower court decisions cited to numerous record evidence about the undue hardship associated with accommodating Plaintiff's religious beliefs. Plaintiff's argument is, therefore, without merit.

D. PLAINTIFF'S ARGUMENT THAT HE SHOULD HAVE BEEN TEMPORARILY ACCOMMODATED UNTIL A PERMANENT ACCOMMODATION COULD BE WORKED OUT IS WITHOUT MERIT

During trial and on appeal, Plaintiff suggested that he should have been allowed to transfer to Sergeant Dawson's squad instead of Sergeant Cook's squad so his days off would have initially been Thursday, Friday and Saturday during the first fifty-day cycle. Plaintiff then argues that he should have been further accommodated by not transferring off Sergeant Dawson's training squad so that he could have continued to have Thursday, Friday and Saturdays off during his entire training period. Plaintiff then suggests that after the completion of the training he should have been given one of the more favorable assignments that typically did not work weekends. As was discussed above, and as found by both lower courts such accommodations would have been detrimental to the continuity and consistency of the training program, therefore, the cost of this accommodation was more than de minimis. Moreover, such temporary accommodations would not have solved the problem at hand and the City was not required to temporarily accommodate him.

Plaintiff's argument that he should have been temporarily accommodated until he completed his field training is too speculative for the Court. Specifically, in Meadows v. Golden Grain Macaroni Co., 45 Fair Empl. Prac. Cas. (BNA) 235, 244 (N.D. Ill. 1987), the court in a religious discrimination suit, stated:

But even if the court were to conclude that Golden Grain should have granted Meadows a temporary shift exchange of sixty or ninety days, there is no evidence that ultimately, Meadows' discharge could have been avoided. It is clear that on July 30, 1984, slightly less than one year after Meadows' discharge, Fred Militech, an employee with less seniority than Meadows was able to bid successfully on a first shift janitor job, but the court would be engaging in sheer speculation were it to try to divine whether, had Meadows been granted a temporary shift change, an acceptable position would have become vacant before the company required him to return to his assigned shift. This court does not believe it can grant relief on such speculative basis (emphasis added).

Id. at 244.

In this case, the lower courts would have been engaging in pure speculation to assume that if Plaintiff had completed his training, he would have been given an assignment that did not require him to work his Sabbath. Thus, the lower courts correctly refused to engage in speculation by assuming that if the Plaintiff

had completed his training, he would have been given such an assignment.

**E. TO HAVE A HIGHER THRESHOLD FOR UNDUE
HARDSHIP THAN "DE MINIMIS," THE COURT
WOULD BE INFRINGING ON THE ESTABLISHMENT
CLAUSE TO THE UNITED STATES CONSTITUTION**

In his Petition, Plaintiff Beadle makes several references to the Establishment Clause in the United States Constitution in regard to the Court's determination of what constitutes undue hardship. Plaintiff relies upon Professor Michael McConnell in support of his position that the Supreme Court misinterpreted the Establishment Clause in its implicit ruling in the Hardison decision. Defendant believes that when this Court ruled on what constituted undue hardship in its Hardison opinion, it was clearly aware of the Establishment Clause and, therefore, its holding is consistent with the requirements of Title VII.

Defendant does agree with Plaintiff that this Court should be mindful of the Establishment Clause. As Plaintiff's own expert testified, he would give special preference to the Seventh Day Adventist over the desires of Methodists, Baptists, Catholics, and the like. The City of Tampa, as a municipal corporation, would be dangerously close to violating the Establishment Clause if it recognized the religious beliefs of the Seventh Day Adventist by accommodating their beliefs, but refuses to do so for the Methodists, Baptists, Catholics and the like.

Defendant does not deny that the courts have recognized that there is a tension between the duty of religious accommodation under Title VII and the Establishment Clause. Few courts

have discussed the precise issue of whether a public employer, such as Defendant, which accommodates a plaintiff by granting a permanent day off thereby violates the Establishment Clause to the rights of other public employees of Defendant.⁶

Defendant relies upon language contained in the concurring opinion of Justice O'Connor in Estate of Thornton v. Caldor, Inc., 472 U.S. 703 (1985). In Caldor, the Supreme Court struck down as unconstitutional under the Establishment Clause a Connecticut state statute which prohibited Connecticut employers from disciplining employees for refusing to work on their Sabbath. In her concurring opinion, Justice O'Connor clarified her position that the majority's holding in Caldor should not be read to invalidate Title VII's religious accommodation provisions. Justice O'Connor explained, "[l]ike the Connecticut Sabbath law, Title VII attempts to lift a burden on religious practice that is imposed by private employers and hence it is not the sort of accommodation statute specifically contemplated by the Free Exercise Clause. Id. at 712 (O'Connor, J. concurring)(emphasis in original). In her concurring opinion, Justice O'Connor also notes, "The statute singles out Sabbath observers for special and, as the Court concludes, absolute protection without according similar benefits to the ethical and religious beliefs and practices of other private employees." 472 U.S. at 709 (emphasis supplied). Furthermore, Justice O'Connor states, "These provisions preclude employment discrimination based on a person's

⁶ As discussed, infra, the court in Miller, supra, has at least discussed this issue.

religion and require private employees to reasonably accommodate the religious practices of employees unless to do so would cause undue hardship to the employer's business." 472 U.S. at 713 (emphasis supplied). Defendant suggests that Justice O'Connor's emphasis on "private" employers calls into question whether Title VII's religious accommodation requirements entirely reach public employment. In other words, it is one thing for a private employer to be required to give an accommodation to its employees, but it is entirely another matter for a public employer to grant a public employee a permanent religious holiday vis-a-vis his fellow employees.

At least one court follows a similar interpretation of Caldor. In Miller, supra, the court found that giving a public employee plaintiff the accommodation he requested constitutes a violation of the Establishment Clause. Specifically, in Miller, as discussed above, the plaintiff was an EMS paramedic who had a religious-based reservation against being assigned to a shift where he would be stationed alone with a female co-worker. Plaintiff claimed religious discrimination under Title VII and also sued under 42 U.S.C. § 1983 ("§ 1983") claiming that his public employer's failure to accommodate his belief was a violation of the free exercise clause of the constitution. In rejecting plaintiff's claims, the court explained:

Here, it is undisputed that the rotating schedule was implemented by the County in furtherance of its legitimate needs. The County had a legitimate interest in reducing its overtime costs and more evenly distributing the workload among its

EMS personnel. The incidental effect of the rotating schedule policy may have been to interfere with plaintiff's religious beliefs and practices, but that is not sufficient to implicate the Free Exercise Clause, much less to constitute a violation thereof.

Miller, 56 Fair Empl. Prac. Cas. at 280. The plaintiff also asserted under the Free Exercise Clause that the defendant County would have to meet the familiar constitutional standard of showing a compelling governmental interest and taking the least restrictive alternative. The court disagreed and reasoned:

Moreover, plaintiff cannot prevail under the 'compelling state interests--least restrictive alternative' analysis he advocates. To permit plaintiff to be exempt from assignment at certain locations or to exempt him from assignments with a female partner solely because of his religious beliefs would single out his religious beliefs for preferable treatment. Such action would, when undertaken by Lexington County, constitute a violation of the Establishment Clause. See Estate of Thornton v. Caldor, Inc., 472 U.S. 703 (1985) (law requiring employers to permit employees not to work on Sabbath violates Establishment Clause). Avoiding a violation of the Establishment Clause, is by definition, a compelling state interest (emphasis supplied).

Miller, 56 Fair Empl. Prac. Cas. at 280, citing, Caldor, 472 U.S. 703. Reading Caldor and Miller together, from Justice O'Connor's emphasis on the term "private" employers and the court in Miller emphasizes that a preferential shift assignment "undertaken by Lexington County," a public employer, would be unconstitutional, demonstrates that there is a distinction to be drawn between public and private employers in terms of determining whether an accommodation by a public employer consisting of a permanent shift assignment constitutes a violation of the Establishment Clause. As Defendant argues above, not only is Defendant not required by Title VII to accommodate Plaintiff by giving him preferential treatment including a permanent shift assignment or a specific training schedule, were Defendant to do so, it would be in violation of the Establishment Clause of the United States Constitution under the reasoning in Caldor and Miller.

CONCLUSION

Plaintiff has made the same legal arguments to the Magistrate Judge and the Eleventh Circuit as he does to this Court. Both lower courts have properly disagreed with his interpretation of the law. Both lower courts have correctly applied United States Supreme Court and Eleventh Circuit precedents in ruling that the City of Tampa did not discriminate against him. Accordingly, there has been no error committed by either of the lower courts and there is no reason why this Court should grant Plaintiff's Petition for Writ of Certiorari.

Dated this 17th day of May, 1995.

Respectfully submitted,

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